Regulation & Governance

Regulation & Governance (2016) 10, 44–57 doi:10.1111/rego.12112

Prosecutorial regulation in the Global South: Environmental civil litigation by prosecutors in China compared to Brazil

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Abstract

Brazil's successful prosecutorial civil action against polluters could be a regulatory example for the Global South. This paper analyses whether such regulation could also develop without the major political, institutional, and legal reforms that spurred it in Brazil. To do so, it analyzes China, where similar reforms have so far not occurred, but where prosecutors have recently started to initiate civil litigation against polluters. It finds that prosecutorial civil litigation in China has only a limited regulatory effect or potential. Prosecutors in China are influenced by conflicting incentive structures that reward one-off lower level test cases with an innovation bonus, while structurally stimulating a focus on general crime fighting. Ironically, as a result of such incentives, the recent legal reform, toward providing standing for prosecutors in public interest litigation, will, in contrast to Brazil, decrease rather than increase the regulatory effect of these cases. These findings have implications for understanding how the interaction between regulatory independence, legal reform, and regime type shapes possibilities for regulatory innovation in the Global South.

Keywords: China, environmental law, Global South, pollution, prosecutors.

1. Introduction

In the Global South, environmental governmental regulators are often obstructed in their enforcement work by a lack of independence and capacity, while having to face widespread and structural non-compliance (McAllister *et al.* 2010). An important way to deal with these implementation challenges has been to diversify regulatory actors and mechanisms to circumvent and bolster faltering governmental regulators. This has led to projects with market based or society based forms of regulation. Unfortunately, few of these projects have been able to yield a nationwide, verifiable, and long-term sustainable impact to end pervasive non-compliance and its resultant pollution.

One can wonder whether countries where illegal pollution is common business practice and where citizens often lack informational, organizational, legal, and political resources to take effective action, are ready for market and social instruments. In the Global South, perhaps regulatory innovation should be sought not in society or the market, but with justice institutions, such as courts and prosecutors. In their study of Indian regulation of the telecommunications sector, Thiruvengadam and Joshi, for example, point to the importance of the Supreme Court in bolstering weak state regulators (2012). They point to how the Court's institutional independence, as well as its particular authority, played a vital role in its function to strengthen and legitimize telecom regulation. They conclude that while scholars "focus on the rise of the regulatory state in the Global South, they should focus in particular on the role of judiciaries (especially in jurisdictions where judicial systems have established some institutional credibility and independence) and on other institutions that could play a supportive or facilitative role similar to that which we have described" (Thiruvengadam & Joshi 2012, p. 341).

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Accepted for publication 4 May 2014.

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In the realm of environmental regulation in the Global South, the prime case of justice actors strengthening weak regulation is Brazil. Here prosecutors started to enforce environmental law through civil action. It is a clear example where a successful regulatory change ended a vicious circle of weak enforcement and widespread compliance, and overcame structural close ties between government regulators and regulated enterprises (McAllister 2008). The success of prosecutors in Brazil as environmental regulators is nothing but astounding. It shows that, in the environmental field, a prosecutorial form of regulation may be highly relevant. All industrialized or rapidly industrializing countries in the Global South could look to it for guidance. A key question is whether something similar could happen in other Southern contexts or whether this is just specific to Brazil.

This paper seeks to explore the relevance of the Brazilian experience for other Southern contexts. In particular, this paper looks at whether prosecutors could start to regulate environmental pollution through civil litigation, when the major political reform and the resultant creation of prosecutorial independence and special prosecutorial civil litigation powers that were vital in the Brazilian case do not take place. To do so, it studies China, where prosecutors have, in a limited number of cases, started to initiate civil litigation against polluters, acting themselves as plaintiffs (Liu 2011). They have done so in a context where there has not been a major political change toward democratization, nor has there been a major institutional reform creating institutional or personal independence for prosecutors.[1] Until very recently, Chinese prosecutors did not explicitly have the legal authority to have standing to initiate these cases as plaintiffs (Liu 2011). The paper analyses whether these Chinese cases mark the start of a broader regulatory shift, as happened in Brazil, and, thus, whether the Brazilian example can also function in a context without regime change and its resultant prosecutorial independence and expanded civil litigation authority. By analyzing China and comparing it to Brazil, the paper seeks to reflect upon the role that independence and legal standing play in the development and functioning of prosecutorial forms of civil environmental regulation. Furthermore, it seeks to draw theoretical lessons about how regime type and regulatory development and legal and regulatory change are related. Finally, the paper draws out broader implications about the role of justice institutions as regulators in the Global South.

The paper uses different sources of data. First, it uses data from newspapers, websites, and other publicly available materials to analyze the basic characteristics and (where possible) outcomes of the existing 24 publicized instances of prosecutorial public interest litigation against pollution in China. Although it is possible that there are other cases, this is the most comprehensive collection of such cases to date. Second, as background material to understand the basic traits of these cases it uses information gathered through interviews with 18 prosecutors, two judges, and two academics, all of whom were not directly involved in these cases, but understand the context in which they occur.[2]

2. Comparing preconditions for prosecutorial regulation

Brazil's successful prosecutorial regulation of environmental pollution has had several preconditions, which have been best summarized by McAllister (2008) and Mueller (2006). First, there was a need for a new regulator to act where the existing administrative authorities had failed to do so and where, as a result, environmental degradation and pollution had become highly severe (McAllister 2008, p. 20). Second, prosecutors through their historic design already had latent powers to oversee the general interest and intervene in private litigation (McAllister 2008, p. 61; Mueller 2006, p. 15). Third, since the 1980s, the Ministério Público (MP) gained an extremely strong form of institutional and personal independence (McAllister 2008, pp. 63–65; Mueller 2006, p. 16). They did so as the 1988 Brazilian constitution made the MP highly independent from other branches of government, and, thus, also more insulated from undue influence from industrial enterprises with close governmental ties (McAllister 2008, p. 110). Important elements of the MP's independence include its own separated power distinct from the other three branches, budget guarantees and autonomy, and strong personal tenure for prosecutors (McAllister 2008, pp. 63–65). This has resulted not only in institutional independence of the MP from other branches of power, but also personal independence with prosecutors acting free of undue influence from their leadership (McAllister 2008, pp. 108–109). Such independence was vital in the successful function of the MP: the more independent the prosecutors, the more effective their regulatory work (McAllister 2008, p. 87; Mueller 2006, p. 16) Fourth, in 1981, the MP gained the power to initiate, not just to intervene in, civil litigation to protect environmental interests, a power broadened in 1985 to cover widespread public civil action to sue those that damage the public interest (McAllister 2008, pp. 62–63), and institutionalized in the 1988 Constitution (Mueller 2006, p. 15).[3] Fifth, the political reform of the 1980s

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ending military dictatorship and starting democratization created the environment in which the MP lobbied for and got its enhanced independence and civil action powers (McAllister 2008, pp. 74–75).

The context of the civil litigation cases in China is both similar to and different from Brazil. We shall first look at the similarities (regulatory failure and historic design) and then at the differences (no political reform, no reform toward independence, and no legal reform [until very recently] creating standing for prosecutors in civil litigation).

2.1. Similarities: Regulatory failure and prosecutorial civil oversight functions in China

Environmental law enforcement by China's environmental protection bureaus (EPBs) has been notoriously challenging (Ma & Ortolano 2000; Tilt 2007). EPBs have insufficient staff and equipment to properly inspect an ever-increasing number of potential polluters. Moreover, sanctions generally remain weak. The average environmental fines for 2006, the last year for which data were still released, were only 10,000 RMB or about 1,100 euro (SEPA 2007). Sanctions are weak, not just because the maximum legally allowed fines remain quite low, but more importantly, because locally managed and paid enforcement agents are influenced by their local governments and even by perverse central level incentives (Ran 2013) not to enforce national laws that run against local interests. While there is obviously variation geographically and over time, we can generally conclude that administrative enforcement of environmental law in China is challenged by a lack of capacity and regulatory autonomy.

China, just as Brazil, lacks a governmental regulator that has sufficient capacity and independence to successfully enforce and, thus, implement environmental law. Citizens and sometimes non-governmental organizations (NGOs) (Stern 2013, p. 118) have started to take action, taking some polluters to court. However, their actions have not yet yielded a strong regulatory effect, as cases are still rare and chances of citizens winning and actually ending and preventing pollution are slim (Wang 2006–2007; Stern 2013). China, similar to Brazil, has a need for a new type of regulator to step in to help implement environmental law. This need is well recognized in China, and over the last decade Chinese scholars and some environmental regulators have argued for procuratorates to start using civil litigation to help regulate environmental risks and, thus, help deal with China's environmental regulatory deficit (Jiang & Duan 2000; Chen 2005; Sun 2009; Tang 2010; Stern 2013).

Similar to Brazilian prosecutors, Chinese prosecutorial agencies also function to oversee the legal quality of civil litigation.[4] They have several powers to do so. First, Chinese prosecutors have a strong authority overseeing the quality of court judgments in civil cases through so-called *Kangsu* (literally "protest litigation") procedures, in which they review the court's decision and can order a retrial (Liu 2011).[5] Second, prosecutors may also support or urge litigation by citizens, state organs, or public organizations when their civil rights or interests of the state have been harmed (Liu 2011).[6,7] The regulatory potential of these powers to oversee and support civil litigation is enhanced because Chinese tort law allows not merely for compensation and repair of damages, but also for remedies that can end and prevent dangers at hand and, thus, potentially regulate environmental risks.[8] In order to exercise such civil law authorities, Chinese procurators have developed specialized civil law divisions and developed civil litigation expertise and experience.

2.2. Differences: Institutional, legal, and political reforms

China is, of course, different from Brazil in a number of crucial aspects. First, Chinese prosecutors do not have a degree of institutional or individual independence comparable to Brazil. Although the Chinese constitution prescribes that procuratorates shall exercise their power independently, the reality is markedly different.[9] The same constitution itself already specifies that the People's Procuratorates are "state organs," that are supervised both by the people's congresses at their level of jurisdiction, as well as superior procuratorates.[10,11] In everyday practice, Chinese procuratorates are most strongly influenced by the government and Politics and Law Commission at their own level of jurisdiction and to a lesser extent by superior procuratorates (Jin 1981; Song 2004), in a way that is highly similar to the oversight of courts (Peerenboom 2002; Liebman 2007) and other governmental agencies (Saich 2011) in China. Prosecutors do not have strong individual operational independence (Chen & Li 2006), nor enjoy tenure or other guarantees to enhance individual autonomy as exist in Brazil, but instead are intensively managed through cadre evaluation mechanisms (ZJW02112011)[12] that exist throughout the Chinese bureaucracy (Edin 2003; Heimer 2006; Landry 2008).[13] Moreover, Chinese local governments that influence Chinese procuratorates and prosecutors have close ties to industrial enterprises responsible for pollution and are well known to protect local interests, rather than enforce national environmental law.

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A second core difference with Brazil is that until very recently there has been no standing for prosecutors in civil litigation in China. The 1991 Civil Procedural Law in article 108 stipulates that only citizens, legal persons, or other organizations with a "direct interest in the case" can act as plaintiffs. As such, China's civil procedure law does not recognize the broad standing for prosecutors to initiate civil litigation against polluters for defending the public interest, as Brazil has introduced with the 1981 National Environmental Policy Act and the 1985 Public Civil Action Act (McAllister 2008, pp. 62–63). After years of debate amongst scholars, prosecutors, judges, and environmental agents, Chinese Civil Procedure Law was recently amended to indicate a move toward a broader standing that might come to include prosecutors. Article 55 of the 2012 amended version of the Civil Procedure Law stipulates that "relevant organs and organizations prescribed by law may initiate lawsuit at competent courts against conducts jeopardizing the public interests, such as causing environment pollution or damaging the interests of a large number of consumers." All is not yet fully clear though, as while some hold that the new provision provides standing to procuratorates (Li 2012), others, including members of the National People's Congress Standing Committee and judicial practitioners, find that the rule is still too ambiguous to determine who exactly has such right of standing (Li 2012). According to China's prosecutor-general, the new law does not yet provide standing to the procuratorates to act as plaintiffs in civil litigation cases, and prosecutors should restrict their involvement in such cases (Cao 2012). An example of how specific legislation may narrow standing is the June 2013 second new draft for an amended Environmental Protection Law reserving it solely to the All China Environmental Federation, a government-run NGO (Chen 2013) and not to the procuratorates (or civic society organizations).

The limited prosecutorial independence and the limited standing in civil litigation are closely linked to the third key difference between Brazil and China: the fact that China has not undergone major political change in any way comparable to the democratization processes following military rule in Brazil. China remains a one-party state and has maintained a resilient form of authoritarianism (Nathan 2003). A prime aspect of the party state is to maintain control over branches of government, including the People's Procuratorates. Therefore, it is unlikely that without a regime-type change, a true change in the independence of prosecutors, both institutionally or individually, can take place. Moreover, a one-party state will likely be highly restrictive in developing broad standing in civil litigation, not merely for legal powers granted, but also in how they are exercised, so as to prevent a broader questioning or even undermining of the party-state powers and interests by those authorized to protect the general interest.

3. Descriptive analysis of prosecutorial environmental civil litigation in China

China has, thus, not had a sweeping political change creating independent prosecutors tasked and authorized to use civil litigation against environmental pollution as occurred in Brazil. Nevertheless, in the last few years there has been a nascent development of prosecutorial civil litigation that bears some resemblance to Brazil. In about 24 instances, prosecutors have started to use civil litigation to sue polluters as plaintiffs, doing so to defend the public interest (Liu 2011; Stern 2013). This might indicate the start of prosecutorial civil litigation similar to Brazil in China. It might also show that political, institutional, and legal reforms are not necessary conditions for the Brazilian experience to be replicated elsewhere. To evaluate these ideas we must analyze to what extent the current Chinese cases are or may lead to a regulatory development that is comparable to prosecutorial environmental regulation in Brazil.

Before directly answering this question and comparing the current Chinese cases, as well as their future potential with Brazil, this section first provides a descriptive analysis of the cases that have occurred so far, analyzing in which types of cases Chinese prosecutors have initiated litigation against polluters. It analyses a unique dataset that consists of all publically available cases where prosecutors were involved in environmental civil litigation. The dataset contains cases up to March 2013, although there may be further cases that we were unable to discover.[14] As we had to rely on published records for these cases instead of on-the-ground interviews with those involved, there is still much we are unable to analyze, including the exact perceptions and motivations of those involved, as well as a thorough understanding of what gave rise to the cases, what happened during trial or mediation, and what the longer term effects have been.

To enable descriptive analysis, we have coded the cases for key variables. Variables were selected on the basis of their relevance for understanding the regulatory need and potential of prosecutorial civil litigation against pollution in these cases. The need and potential for prosecutorial civil litigation is greatest in cases where EPBs and citizens have been unable or unwilling to act, and where prosecutors can and will successfully act. Key variables to analyze

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this are: the overall number of such cases (the higher the more potential deterrent effect of cases); the geographical dispersion of the cases (the more dispersed and also the more in rural and poorer areas, the more need and potential); the type of damages (the more severe and harder to detect, the more need and potential); the existence of victims (the more, the less need); the types of polluters (the more state-owned and larger firms, the more need); the involvement of other actors, such as EPBs, local governments, higher level procurators, or the media (the more involvement, the less need); the types of claims (the more reparative/preventive, the more the regulatory potential of these cases); and case outcomes (the more success and the higher the damages awarded, the more deterrent potential).

Our first finding is that the overall number of prosecutorial civil litigation cases that we have been able to find against pollution is very low, 24 by the end of 2012. If we look at the distribution over time (Fig. 1), we see that after two cases in 2003, environmental civil litigation took off in earnest in 2008, with a steady increase from 2010 to 2012, from three to seven cases per year.

The data do not reveal a clear predilection in terms of the geographical location of the cases in our sample. If we analyze their general distribution (see Fig. 2), we note that they are centered mostly in the east, south-east, and south-western areas of China. There have been no cases in our sample in the north-west, north, and north-east. We can see that the cases cover the affluent (both in absolute and per capita gross domestic product [GDP][15]) (Guangdong, Jiangsu, Shandong, Zhejiang, Fujian), middle-income (Sichuan, Hunan, Hubei, Chongqing, Jiangxi), and poorest provinces (Yunnan and Guizhou).

All cases we found involve one-off efforts with no follow-up. With the exception of Guangdong and Zhejiang provinces, most provinces only had one or two cases. Looking in more detail, we find that none of the procuratorates worked on more than one case, except for the Fanyu District Procuratorate in Guangzhou City that worked on two (cases 7 and 23). This is noteworthy, especially in Jiaxing City, where there was a total of four prosecutorial environmental civil litigation cases, but each time in different districts and counties.

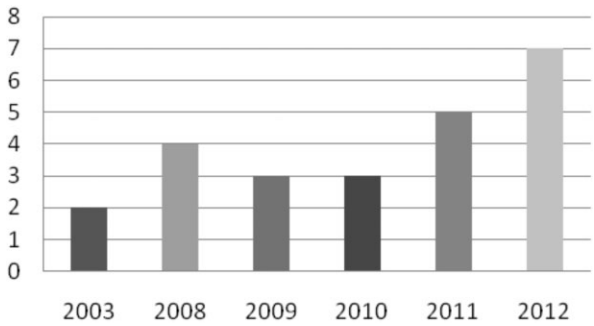

Figure 1 Annual number of public interest cases involving prosecutors.

Figure 2 Geographical distribution of public interest cases involving prosecutors.

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Cases are more likely to occur in rural than in urban areas and mostly at the lowest level of prosecutorial administration. Analyzing the case details about where the actual damages occurred and where the victims lived, we find that 75 percent (n = 18) occurred in rural areas, while 25 percent (n = 6) occurred in clearly urban areas.[16] Most cases were, thus, highly local and rural.

Analyzing which procuratorates were involved in our sample, we see that the cases overwhelmingly involve local district-level procuratorates, with only two cases involving municipal intermediate-level procuratorates, while there were no cases with higher provincial-level procuratorates.[17]

In some of the cases, higher-level support for the local-level cases played a role. In those cases, we see that the local-level procuratorates were coordinated to some extent by higher-level procuratorates or at least sought approval at the higher level. In case 6 in Jiangxi, for instance, the municipal-level procuratorate prepared the case together with the local-level EPB and, once it had sufficient evidence, assigned it to the district-level procuratorate. Another example is case 17 in Zhejiang province, where the formal plaintiff was the district procuratorate, the case was led by the municipal-level procuratorate, and the provincial level had authorized an opinion supporting the district level's role as plaintiff. Also we see that, for instance, in Guangzhou City, after the second prosecutorial environmental civil litigation case occurred within the municipal jurisdiction (case 7), the municipal procuratorate drafted a guidance ordinance for further environmental civil litigation there. Such higher level coordination exists in the Chinese constitutional set-up of procuratorial work integration," making lower level procuratorates subordinate to instructions from superior level procuratorates.[18] This has led to a practice where higher and lower level prosecutors, especially from the weaker administrative and civil divisions, meet to discuss complicated cases where lower level prosecutors have to accept guidance and advice from their higher level colleagues.[19]

In many cases, prosecutors collaborated informally with environmental authorities. At first impression, the data show that, in most cases, prosecutors acted as sole plaintiffs (Fig. 2). In two cases they acted to formally support civil litigation of an EPB and Land and Resource Bureau (both in Yunnan province), in one case in Guangdong province the procuratorate urged a town government to initiate civil litigation, and in one case in Daoxian (in Hunan province) it asked the court to enforce an administrative decision by a local EPB.[20]

There is evidence, however, that some of these cases could only develop because the prosecutors were able to work with the environmental authorities. A good example is the Xinyu municipal people's procuratorate in Jiangxi (case 6) collaborating to gather evidence for a civil litigation case that was ultimately filed by the Yushui district people's procuratorate.

The data reveal that the cases were tried in three different types of courts: ordinary courts, maritime courts, and environmental tribunals. All except three were dealt with in the ordinary courts, two in the maritime courts, and one in an environmental tribunal. The low number of cases in the environmental courts is noteworthy, as these recently established, specialized, green-oriented branches of the courts would seem to be ideally equipped and open to such new forms of litigation, especially because some of these courts adapted special procedures that allow standing for prosecutors as plaintiffs in environmental civil litigation, regardless of the pre-2012 Civil Procedure Law's insistence that plaintiffs must have a direct interest at stake (Liu 2012; Stern 2013).

Most of the cases involved relatively small and weak defendants. We distinguish three main types for analytical purposes. The first type is the Individual Defendant, a single person or small group of individuals who have somehow caused pollution, but do not act as an enterprise. Second, are Micro Enterprises, as defined under Chinese law, with the lowest possible requirements for entities still called enterprises, primary income, and assets.[21] Third is a rest category that includes all forms of enterprises larger than micro-enterprises as defined under Chinese law, here called Major Enterprises. This category includes what Chinese law would call large, medium, and small enterprises.[22] In our sample, most defendants are either individuals or micro-businesses (see Fig. 3). Only four enterprises fall within our broad category of major enterprises, including a cement plant in Hunan (case 3), a chemical plant in Chongqing (case 10), two poultry farm companies in Yunnan (case 13), and an oil and gas company in Guangdong (case 16). In case 12, in Guangdong province, there was a mixture of defendants with both individuals and one major enterprise. It is noteworthy that none of the defendants were state owned or even collectively owned, which are more likely to have close governmental ties and are, therefore, more difficult for the EPBs to act against. All of the cases were against privately owned firms or individuals.

In most cases, there were victims of pollution: in 17 of the 24 cases. In all of these cases the victims were located in the direct vicinity of the source of the pollution, while in one case in Sichuan province (case 2), the procuratorate

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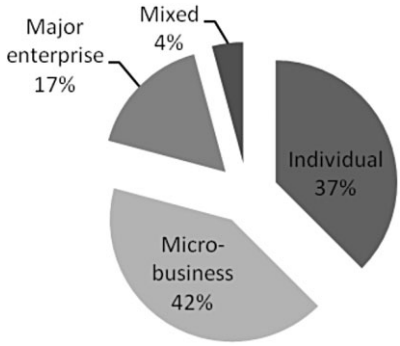

Figure 3 Types of defendants.

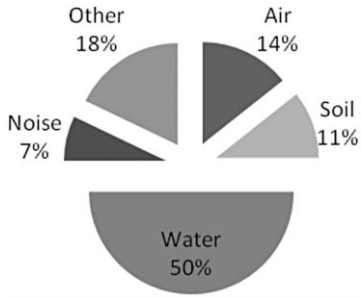

Figure 4 Types of damages.

itself was also located in the neighborhood and, thus, was listed as a victim. In this last case, before the procuratorate moved to this neighborhood, the neighbors' health had been affected by the pollution, and citizens complained in vain for many years to the local EPB while the pollution continued. Once the procuratorate started developing health problems, prosecutors initiated the public interest suit as plaintiff. Therefore, civil litigation by procuratorates very often involved cases where there were victims who themselves could also have sought damages directly through ordinary litigation.

The cases chiefly involved water pollution and, less so, air, soil and noise pollution. Figure 4 outlines the different types of damage involved in all cases, calculating the numbers based on the occurrence of each type of damage, including multiple damage in several cases.

There were also some cases that involved damage to natural resources, which have been listed under the "Other" category. In all, we see that damage, which normally generates more public complaints, as it is generally easier to detect (Van Rooij 2006), such as air and noise pollution, yields fewer civil litigation cases with procuratorates.

The cases mostly concerned relatively minor damage. Minor damage is defined here as pollution resulting in economic losses below 10,000 RMB and with no known negative health effects. Major damage involves more than 10,000 RMB or known negative health effects.[23] This is a conservative standard, in that it easily defines cases as major. Nevertheless, we still find that two-thirds of the cases involve minor damage while one-third involves major damage.[24]

Media attention for the pollution prior to filing the case does not seem to play a role in spurring the public interest suits initiated by procuratorates. Pollution had been reported in a local newspaper prior to the litigation in only one case in Guangdong province. We found no similar reports for any of the other cases. We also found no intensive national-level media attention for the pollution prior to prosecutorial involvement in any of the cases. *Ex post* media attention is a different story. Most often the original story was posted by the procuratorates themselves online, and then later picked up by local newspapers and, in some cases, larger national news web portals and environmental websites.

In the cases studied, we see that there is often a mixture of different claims. In many cases we find a combination of claims for reparative and preventive remedies to clean up, end, and prevent pollution, as well as claims for

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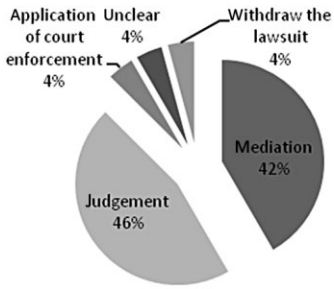

Figure 5 Dispute resolution procedures followed.

compensation for damages. On the whole, 54 percent (n = 13) make sole reparative/preventive claims, 29 percent (n = 7) make a combination of reparative/preventive and compensatory claims, while only 17 percent (n = 4) make other claims. Compared to data we have about ordinary environmental litigation, the rate of reparative/preventive claims seems somewhat higher; when compared to a sample of such ordinary cases published online in Chinalawinfo.com.cn, 41 percent had sole compensatory claims, 32 percent had a mix of reparative/preventive and compensatory claims, and there were no sole injunctive cases (Altena 2010).

To understand the results, let us now look at what types of procedures were followed to resolve the disputes. In Figure 5, we see that the majority of cases was either adjudicated (10 cases) or mediated (11 cases). In one case, we were unable to trace the outcome (case 22 in Zhejiang), in one the procuratorate withdrew the case (case 20 in Zhejiang against an individual called Zhang with no direct victims), and in one case (case 18, against an oil refinery in Hunan province) the procuratorate asked the court to enforce an EPB decision to end pollution.

Broadly speaking, prosecutors have been very successful in winning adjudication or achieving favorable settlements in our sample of cases. Our data allow us a limited view into the substantive outcome of the cases. For many cases (all except case 21), we have details about what the final verdict or mediation agreement was. In all of those cases, we can generally conclude that the procuratorates formally won (in the adjudication cases) or received a favorable settlement (in mediation). We also see many cases in which major compensation awards were granted (cases 3, 5, 7, 11, 12, 13, 15, 16, 17), for instance, in case 15 where six individual defendants in Yunnan province had to pay 440,000 yuan to a special civil litigation fund, or in a mediation case, number 15, where the defendants agreed to pay 540,000 yuan for environmental improvement. To compare our findings with an analysis of ordinary cases, we have three sources of data. First is Lü (2008), the most comprehensive set, however, she only analyzed the cases with an overall win or lose outcome, finding that about 50 percent of citizens generally win. Second, we have Altena's (2010) analysis of a smaller number of cases published online in a legal case law database, analyzing not just the general outcome, but also the percentage of compensatory claims awarded. She finds that only 16 percent of cases get 100 percent of the damages they claim, seven percent get 67–99 percent, and 22 percent get only one to 33 percent, while 22 percent simply lose and get nothing. Stern (2013, pp. 139–140) similarly finds that in a broad sample of citizen environmental law suits studied, plaintiffs were awarded 29 percent of their claims, by judges using pragmatism, common sense, and wide discretion based on what they think polluters can afford, placing part of the blame on the plaintiffs, and limiting compensation when they fear plaintiffs are over-claiming. Althena and Stern, thus, show that in many cases, winning does not necessarily mean that plaintiffs get most of what they claimed. For 25 percent (n = 6) of the limited number of cases studied here, we know both the compensation claim and the actual damages awarded. In all of these cases (nos. 5, 7, 15, 17, 24) 100 percent of the originally claimed damages was awarded, and in one case even more than was claimed (case 13).

To summarize, we can descriptively characterize prosecutorial civil litigation against pollution: few cases; mostly rural location; conducted by local-level prosecutors with no prior experience in such cases; sometimes guided and supported by higher-level prosecutors; often collaborating informally with EPBs involving minor companies; with minor, mostly water or mixed pollution; with victims; with no prior media attention; involving both compensatory/reparative and preventive claims/handled through both mediation and adjudication resulting in favorable judgments and settlements.

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4. Discussion: Can China be the next Brazil?

Now that we have descriptively looked at the existing Chinese cases we can discuss two questions: First, to what extent are the current cases comparable to prosecutorial civil litigation environmental regulation in Brazil? And second, to what extent might they potentially point to a future development in the direction of Brazil?

The core characteristic of Brazil's prosecutorial form of environmental regulation has been its success in ending impunity of illegal polluters. In the cases we were able to study in China, the success prosecutors have in winning civil litigation cases and getting more than just compensation for damages, but also remedies to repair and prevent harm, is positive. There is potential here, perhaps, as prosecutorial involvement in environmental civil litigation cases might have an extra-deterrent effect (GZG25102011,ZJW02112011). As an expert on these cases explained to us: "Enterprises do not fear environmental civil litigation cases, what they fear is the involvement of procuratorates. Why do they fear that? Well if they continue violations, what would the prosecutors do next? They would criminally prosecute enterprise leadership" (ZJW02112011).

However, any comparison with current civil litigation in China and the broad regulatory success of such cases in Brazil ends given the low number, as well as the type of existing cases in China, at least in as far as we were able to find them. There are several hundreds of thousands of environmental complaints each year; however, prosecutors initiate very few of these. Also, in the sample studied here there have been no landmark or breakthrough cases yet, where one local case was picked up strongly in the national media and might create a broader ripple effect (cf. Stern 2013, p. 146) deterring potential polluters (cf. Liu 2011). Even within the small number of cases studied, very few involved major or difficult cases of pollution that could not have been solved otherwise. Most cases had relatively minor polluters with limited power, victims that could themselves have sued, and had the collaboration of EPBs that might have more easily used their administrative powers to end and prevent the pollution involved (cf. Liu 2011; Stern 2013). Thus, we cannot conclude that these existing cases have much added regulatory value. We see a particular pattern in these cases studied where mainly local-level procuratorates take on cases with mainly minor damages, with minor media attention, and with victims and EPB support. So these are not the large numbers or landmark cases that one would hope or expect to arise in environmental civil litigation. Rather it seems that procuratorates have experimented locally with the lower hanging fruit, the easy cases. Prosecutors have acted in part to add capacity and autonomy where needed, but often where they were not needed. They were needed in the water pollution cases, but less so in cases where there were already victims and EPB support and where there were smaller enterprises, which was in the majority of cases. Because most cases involved grass-roots-level procuratorates, it is unlikely that they added much capacity, and, vice versa, it seems these prosecutors lacked capacity, as evidenced by the fact that they needed the help of the EPBs in almost all cases. Of course, this does show that EPBs have at least been ingenious enough to augment their lack of capacity at times by collaborating with prosecutors, albeit only in relatively minor cases.

So do these first 24 cases studied here point to a broader development that is likely to take off in the near future and that may yet come to resemble prosecutorial civil litigation in Brazil? To answer this question, we must ask why there were so few cases and why the prosecutors that did try only made one attempt. A first reason for the low number of cases generally, as well as the low number per local procuratorate, is that these cases do not fit the local capacity and preferences of prosecutors (cf. Liu 2011). One obstacle in initiating more of these cases is simply that procuratorates are not equipped to handle the specialized environmental cases that often require technical, legal, and scientific knowledge to gather and present the evidence (Lü 2008; Sun 2009). Of the 16 prosecutors we interviewed who worked in the civil litigation branch from Sichuan province, none indicated experience with initiating environmental litigation. Only two prosecutors indicated any knowledge of these cases, and both times they mentioned a local Sichuan case (case 2) (LPF30082010,WHB19082010). More importantly, almost none thought prosecutors should take on these cases as plaintiff, pointing at the limits in their own staff, workload, and ability to take on these cases. As a senior trainer of prosecutors explained to us:

> We always joke that the civil and administrative prosecutors are the old, weak and crippled in our nation's procuratorates. Many are just before retirement or have very limited ability. For example, in one unit there are seven prosecutors, but only three to four are fit for active duty. If you give these people this new task (environmental civil litigation), they cannot do it. And if you write in the law that procuratorates have the power to initiate civil litigation, I guess the result will be that each jurisdiction does one or two cases and that is the end of it, and they are deemed to have done their legal obligation. (ZJW02112011)

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This is highly different from the young and energetic prosecutors in Brazil's MP (McAllister 2008), nor do we see an indication that reformist prosecutors employing a relational form of regulation are at work in these civil law divisions, as Coslovsky found to be a vital element in the Brazilian experience (Coslovsky 2011).

Apart from limited capacity, interference by local governments also undermines prosecutorial civil litigation. Although some hold that prosecutors are more insulated from local power arrangements than EPBs, as higher-level procuratorates can maintain stronger oversight over lower-level prosecutors than is possible in the environmental regulatory domain (TWJ031202011), there is also evidence to the contrary. In fact, prosecutors are at times susceptible to interference from local governments trying to protect local industry and block unfavorable litigation against local enterprises, just like the EPBs. As one of our informants, with in-depth knowledge of these cases, told us:

> If the money comes from him (the local government), and manages your staff, do you dare to sue enterprises that pay him taxes? That is impossible (. . .). So how were the civil litigation cases that did occur possible? Well, here the local government had already given permission to initiate the litigation. If you punish these companies, you can only go ahead if you have the support of the whole local party and government organizations, as well as party committee. Then you will be successful for sure. Without their support you will fail for sure. (ZJW02112011)

The lack of capacity and independence from local governments and, thus, local industry do not tell the full story, however. They do not explain why prosecutors who did initiate these cases and ended up winning them did not try again.

To understand this we must look at the Chinese cadre evaluation management system (Edin 2003; Heimer 2006; Landry 2008; Minzner 2009; Ran 2013; Wang 2013) that guides the work of local-level prosecutors. A conflict between incentives rewarding innovation on the one hand, and incentives rewarding crime control and punishing risk-taking on the other, can explain why local-level prosecutors only took one-off attempts at environmental civil litigation. Under the cadre evaluation rules for prosecutors, innovation is rewarded. These evaluation rules seem to have played a stimulating role in the cases where prosecutors initiated civil litigation. We learned from our informants that the prosecutors that did initiate these cases were stimulated because they could benefit from bonuses for conducting innovative forms of prosecutorial work (ZJW02112011, LZM31102011, TWJ03122011). These bonuses for innovation might also explain why, except in one case, none of the procuratorates did more than one such environmental civil litigation case. As a leading environmental law expert with in-depth knowledge of these cases and contacts with prosecutors involved explains:

> If you look at cases where the prosecutors were plaintiffs, you see that overall each procuratorate did so only once. Once done, they never did so again. Why? Because doing it again will not yield any innovation bonus. Second time around it is no longer innovative; you have already innovated. (LZM31102011)

One can, however, wonder why this incentive system did not create many more one-shot cases in China's multitude of county-level procurators. The answer is that the incentive to innovate is but one of several indicators used to evaluate cadre. The same cadre evaluation system also incentivizes a focus on crime control and limited risk-taking through crime reduction and case success rate targets. This directly contradicts innovation through environmental civil litigation, which will logically point away from general crime and involves risk. As such, it directly undermines the development of environmental civil litigation suits. As one of our informants explained in some detail:

> China's prosecutors and judges are subject to a very strict and unreasonable evaluation system, like an enterprise management target evaluation system. If I, for instance, have a hundred cases this year, you get a set of highly ambitious targets for these cases (. . .) for the criminal section of the procuratorate (these targets) demand that in their public prosecution they should not have any cases where the defendant is judged innocent. If one of my cases ends up with an innocence verdict, I am judged to have failed my case. It is very scary (. . .) So you can imagine that prosecutors do not want to handle more cases, given this system. And if I as a prosecutor start to do civil litigation, you tell me, what would I do if I lose? (. . .) From a civil law perspective losing cases is normal, but from the evaluation perspective, how would a loss be handled? (ZJW02112011)

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It seems these evaluation systems have given rise to a risk aversion amongst public prosecutors. As a leading environmental law expert who has discussed these cases with local prosecutors concludes:

> When I asked them (the prosecutors involved) why they only acted against smaller enterprises, they said, we did not dare to take on big firms, what would we do if we would lose? (LZM31102011)

Moreover, an expansion of these civil litigation cases, some claim, may actually undermine prosecutorial power as the prosecutors make themselves subordinate to courts that they normally have the power to oversee, at least in civil cases (Lü 2008; Sun 2009; LZM31102011). As one provincial-level judge and key coordinator in a provincial local environmental court's structure explains:

> If I (as a prosecutor) were to do this (initiate environmental civil litigation) it would not enhance my power, but actually decrease it. If I am a plaintiff in this case and if I win finally, no problem. But what if I lose? Once that happens I can no longer exercise my supervisory right of prosecutorial protest (*kangsu*), whereas I can so in other cases, because I (as a prosecutor) supervise your (the court's) work. (SFG10102011)

Thus, criminal work remains the priority, and these civil cases are not deemed important enough, nor incentivized enough, to spur further specialization and the investment necessary to handle a larger volume and more complex and difficult cases. In the present conditions it is, therefore, unlikely that China can follow Brazil.

One might, however, wonder whether a legal change granting broad authority to initiate civil litigation to Chinese prosecutors would change this. One argument is that under the old pre-amended civil procedure law, prosecutors were challenged in proving they had a direct interest in the case, which made it harder to get these types of cases accepted in court. A change in the law might facilitate prosecutorial civil litigation and strengthen this form of prosecutorial environmental regulation (Liu 2011). On the other hand, the fact that no such standing existed made any attempt to initiate these cases and get them automatically defined as a form of innovation worthy of a bonus. With the new law, perhaps more prosecutors will start such cases. However, based on all of the above, we very much doubt this. It seems that the only driver for such cases was the innovation bonus, which the amended law terminates (ZJW02112011). With the new law, all existing obstacles, such as lack of capacity, independence, and a preference for criminal work, remain. As such, we can only conclude that Chinese prosecutors are unlikely to become a strong regulatory force using civil litigation against polluters, similar to what has happened in Brazil.

5. Conclusion

Brazil's successful prosecutorial form of environmental regulation has its own historical, political, and legal conditions. Key in these conditions were a broad political reform and regime change that led to an institutional and legal reform creating broad prosecutorial independence and legal powers to protect the public interest (Mueller 2006; McAllister 2008). This paper has sought to understand whether successful prosecutorial environmental regulation could also occur in the Global South when similar conditions were not present. It has done so by studying the development of prosecutorial civil litigation against polluters in China. It finds that, while the Chinese cases studied here bear some resemblance to action in Brazil, their similarities are superficial at best. Where Brazilian prosecutors used civil investigations and actions to end impunity of polluters, in the cases studied, their Chinese colleagues have only initiated a small amount of civil cases against minor polluters. Spurred by innovation incentive structures, the Chinese prosecutors have gone after the lower hanging fruit, fulfilling limited regulatory need and having almost no regulatory effect. Given the lack of capacity and independence, as well as the conflicting incentive structures, it is unlikely that the Chinese one-off prosecutorial civil litigation cases studied here can develop into a broader regulatory force, even now that a legal amendment points toward standing for prosecutors in such cases.

The comparison of China and Brazil has several broader implications for the study of regulation in the Global South. First, it shows us that a major legal reform itself is not the key or only ingredient for a regulatory change. In Brazil, the legal reform was part of a broader package of institutional and political reform and the legal changes gave the legal authority that prosecutors could and wanted to exercise using their newfound independence to get broader power, support, and legitimacy by championing the public interest in the new Brazilian political order. In China, by contrast, prior to a legal change, the lack of formal legal authority created an innovation incentive spurring one-off minor test cases. In contrast to what some believe and hope (Liu 2011), this paper holds that a formalization of

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prosecutorial standing in civil litigation is unlikely on its own to create a broad prosecutorial civil action based litigation, as occurred in Brazil. The broader lesson is that in the Global South, and most likely elsewhere as well, legal reform may be a necessary but not a sufficient condition for regulatory change. Further comparative study could look at the sequencing of legal reform and regulatory changes, identifying under which conditions a change in the law itself spurs the necessary institutional and political change that supports a broader regulatory change, and under which conditions such institutional and political change comes prior to a legal change.

Second, the paper demonstrates that in regulatory change and innovation, independence plays an important but not essential role. In Brazil, the creation of an extreme form of prosecutorial independence created the space that enabled prosecutors to use their public interest defense powers through civil action. It was able to insulate prosecutors from government and business and, therefore, play a neutral role as strong regulators; however, one that some question as lacking accountability and having too much discretion and power. In China, by contrast, a broad form of independence never developed. A lack of independence on its own, however, was not the key obstruction to a successful prosecutorial form of civil regulation. Instead, the way government and higher prosecutorial agencies set incentives for prosecutors created a conflicting incentive structure that undermined both the capacity and willingness of prosecutors to take the risk of environmental civil litigation. We hypothesize that in China, even without full independence, an incentive structure could be changed to support and favor prosecutorial civil litigation and, thus, induce a regulatory change more similar to Brazil. There are some signs of such changes with a move toward introducing harder environmental targets for local leaders that ultimately control the procuratorates (Wang 2013).

Third, the paper deepens our understanding about the relationship between regime type and regulatory change. While in Brazil democratization opened up the path toward broad independence, in China's resilient one-party state no similar move toward independence developed. We believe that this is no coincidence and that independent forms of regulation are simply not compatible with a one party-state political structure that will seek to dominate branches of government, as well as market and society. In an authoritarian context such as China, no regulatory institution is likely to develop that can function fully or even largely independently from vested party-state interests and, given the close state–enterprise ties, also business interests. Future research on regulation in the Global South should take regime type as a core variable to better understand how regulation and different political systems develop and function, to move beyond most current Northern regulatory literature in which some form of democratic governance was a given.

Acknowledgment

This research was supported by a generous Veni grant by the Netherlands Organization for Scientific Research (NWO).

Notes

1 At its core, such independence (in this paper) is seen from a regulatory perspective, namely: Can prosecutors individually and institutionally act independent of direct and indirect influence of polluting companies they are supposed to help regulate?
2 A full list of the cases, case documents used, and interview details is on file with the authors and was submitted during the review process.
3 Federal Constitution of Brazil of 1988, art 129, III.
4 See generally, Constitution of the People's Republic of China of 1983 amended version of 2004, art. 129, and in particular, Civil Procedure Law of the People's Republic of China of 1991, amended version of 2012, art. 14.
5 Civil Procedure Law of the People's Republic of China of 1991, amended version of 2012, Art. 185–188.
6 Civil Procedure Law of the People's Republic of China of 1991, amended version of 2012, Art. 15.
7 Prosecutors may also file civil litigation aligned to criminal cases. PRC Crim. Proc. L. 1979, amended version of 2012, art. 99.
8 See General Principles of Civil Law of the People's Republic of China of 1986, art 134, sub. 1–3, Law on Torts of the People's Republic of China of 2009, art. 15.
9 Constitution of the People's Republic of China of 1983 amended version of 2004, art. 131.
10 Constitution of the People's Republic of China of 1983 amended version of 2004, art. 129.
11 Constitution of the People's Republic of China of 1983 amended version of 2004, art. 132–133.
12 Code references starting with three letters and followed by eight numbers refer to interview notes in file with the authors.

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13 Law of the People's Republic of China of 2001, art. 24–28.
14 There may be more cases where prosecutors were indirectly involved in civil litigation through the support or urging of other plaintiffs, but which didn't attract much media attention, official information on the internet, or in social life.
15 Provincial GDP rank based on China Statistical Yearbook 2012, provincial per capita GDP rank based on http://news.xinhuanet.com/local/2012-02/07/c_122667889.htm [Last accessed 28 January 2013].
16 In our analysis, we look at where the damage happened and where the victims of such damage lived. We define "rural" and "urban" from the perspective of the administrative division (so-called: " Xian" county [rural] or *Qu* "district" [urban]) and for districts by looking at the actual geographical location, which may be outside an urban center, even though the whole area is still called an urban district.
17 In these two cases, in which municipal intermediate-level procuratorates were involved, one procuratorate gave the authority to the lower local procuratorate, and the lower local procuratorate helped to finish the trial in the name of municipal intermediate-level procuratorate (case 4).
18 Constitution of the People's Republic of China of 1983 amended version of 2012, art. 132–133.
19 Based on interviews with prosecutors (1–16) see appendix c, as well as observations during an internship in a local level procuratorate.
20 This case was included in the dataset, even though it is different from the others in that it is not a case where the procuratorate was involved in a civil case asking for reparative/preventive remedies or compensatory damages. It is included because it has highly similar aims and methods and because it was labeled locally as a model case of environmental civil litigation.
21 Standard Rules on Distinguishing Small and Medium Sized Enterprises of the Ministry of Industry and Informationalization of 2011, art. 4.
22 Standard Rules on Distinguishing Small and Medium Sized Enterprises of the Ministry of Industry and Informationalization of 2011.
23 Our standard is developed on the basis of how the Chinese Ministry of Environmental Protection labeled pollution incidents up to 2007. Under these definitions, regular incidents are those with direct economic losses between 1,000 and 10,000 RMB and without health effects, while heavy and major incidents indicate pollution that causes economic damage in excess of 10,000 RMB and with major health effects and casualties. Since 2007 these definitions have changed in such a way that all categories require casualties, and, thus, are useless for our analytical purposes as all cases would then be labeled minor. See SEPA (2007, 2008).
24 Information about direct economic damage was not available in all cases, therefore, our analysis was based on the claim made, as well as whether health effects were mentioned in any of the documents studied in relation to the cases.

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